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7 SAN DIEGO, CA 92108
8 Telephone: (866) 300-8750
9 Facsimile: (858) 309-1588
10 E-mail: CaliforniaLegal@mcmcg.com
11 CA Debt Collector License Number Pending
12 Attorneys for Plaintiff

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Superior Court of California,
County of Los Angeles
5/03/2024 9:31 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

8 **SUPERIOR COURT OF CALIFORNIA**
9 **COUNTY OF LOS ANGELES**
10 **CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT**

11 MIDLAND CREDIT MANAGEMENT, INC.
12 Plaintiff,

13 v.

14 JOSE ZELAYA

15 Defendant(s).

Case No. 24CHLC00955

**DECLARATION IN SUPPORT OF
JUDGMENT PURSUANT TO
C.C.P. § 585(d) and § 1788.60**

28 **EXHIBITS IN SUPPORT OF JUDGMENT**

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STATE OF CALIFORNIA
COUNTY OF _____

Midland Credit Management, Inc.,
Plaintiff.
-vs-
JOSE ZELAYA,
Defendant(s).

DECLARATION OF SHAE HART
IN SUPPORT OF JUDGMENT

Shae Hart, whose business address is 600 W. Saint Germain St Suite 200, St. Cloud, MN 56301-3616, certifies and says:

1. I am an officer for and employed as a Legal Specialist by Midland Credit Management Inc. ("Plaintiff"). I am a competent person over eighteen years of age, and make the statements herein based upon personal knowledge of those account records maintained by Plaintiff. Plaintiff is the current owner of, and/or successor to, the obligation sued upon, and was assigned all the rights, title and interest to Defendant's COMENITY CAPITAL BANK account XXXXXXXXXXXXXXX9338 (MCM Number 320595117) (hereinafter "the Account").

1 2. I have access to and have reviewed the electronic records pertaining to the Account
2 maintained by MCM and am authorized to make this affidavit on MCM's behalf. The
3 electronic records reviewed consist of (i) data and records acquired from the seller or assignor
4 when MCM purchased or was assigned the Account, which were incorporated into MCM's
5 business records upon purchase or assignment, and (ii) data and records generated by MCM
6 in connection with servicing the Account since the date the Account was purchased by or was
7 assigned to MCM. In addition, I reviewed the documents that are attached to this affidavit.

8 3. I am familiar with and trained on the manner and method by which MCM creates
9 and maintains its business records pertaining to this Account, which consist of (i) data and
10 documents acquired from the seller, and (ii) subsequent collection and/or servicing activities
11 by MCM. The records are acquired or created, and are kept in the regular course of MCM's
12 business. It was in the regular course of MCM's business for a person with knowledge of
13 the subsequent collection and/or servicing activities recorded to make the record or data
14 compilation, or to transmit information thereof to be included in such record, or for such
15 information to be posted in MCM's records by a computer or similar digital means. In the
16 regular course of MCM's business, the record or compilation of the subsequent collection
17 activities is made at or near the time of the act or event by MCM as a regular practice.

18 4. On or about 2023-02-22, Midland Credit Management, Inc. became the successor in
19 interest to this Account. Plaintiff acquired and incorporated the attached Account records into
20 its permanent business records as a result of Plaintiff's purchase or assignment of the Account.
21 These records are kept in Plaintiff's regular course of business and, along with the electronic
22 records provided at the time of purchase or assignment, are Plaintiff's primary source of
23 business records for this Account.

24 5. The accuracy of such records is relied upon by Plaintiff in collecting this Account. These
25 records are trustworthy and relied upon because the original creditor was required to keep
26 careful records of the Account at issue in this case as required by law and/or suffer business
27 loss.

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DECLARATION OF SHAE HART - 2

320595117

AFFRECATTACH

23-224795

1 6. This Account was purchased after 2014-01-01 and, therefore, is subject to California
2 Civil Code Section 1788.60.

3 7. In accordance with California Civil Code sections 1788.58(a)(3-8), MCM's records show
4 the following relevant information concerning the Account:

5 a. Plaintiff is the sole owner of the Account.

6 b. The Account was opened on 2020-11-30 and charged off on 2023-01-31 with a
7 balance of \$8,039.35.

8 c. MCM's records show that the balance of \$8,039.35 remains due and owing as of
9 2024-01-30. Plaintiff is not seeking to recover any post-charge-off interest and/or fees that
10 may have been imposed by the charge-off creditor or subsequent purchasers of the debt and is
11 seeking to recover only that portion of the charge-off balance that remains due and owing as of
12 2024-01-30.

13 d. The last payment posted to the Account on 2022-06-18.

14 e. The charge-off creditor name and address at the time of charge-off:

15 COMENITY CAPITAL BANK, 2795 E. COTTONWOOD PARKWAY SUITE
16 100, SALT LAKE CITY, UT 84121

17 f. The charge-off Account number associated with the debt at time of charge-off was
18 XXXXXXXXXXXXXXX9338.

19 g. Defendant's name and last known address as it appeared in the charge-off creditor
20 or debt owner's records:

21 JOSE ZELAYA, 1615 W COURT ST APT 6, LOS ANGELES, CA 90026

22 h. The complete chain of title including COMENITY CAPITAL BANK and all post-
23 charge-off purchasers/assignees of the debt are as follows:

24 1. COMENITY CAPITAL BANK 2795 E. COTTONWOOD PARKWAY, SUITE
25 100, SALT LAKE CITY, UT, 84121

26 2. Midland Credit Management, Inc. 350 CAMINO DE LA REINA, SUITE 100, SAN
27 DIEGO, CA, 92108
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DECLARATION OF SHAE HART - 3



1 8. MCM's records show that MCM or its agents made demand for payment of the balance
2 herein prior to making this affidavit and Defendant(s) failed to make full payment of the
3 amount owed on the Account.

4 9. Attached hereto as Exhibits A, B, and C are the Account records I reviewed in executing
5 the affidavit that relate to the Account and/or payment(s) received.

6 Exhibit A. Chain of Title and Seller Data Sheet - establishing the facts
7 required under Civil Code sections 1788.58(a)(3), (4), (5), (7)
8 and (8)

9 Exhibit B. Monthly Statement Recording a Purchase Transaction,
10 Payment, or Balance Transfer - establishing the fact required
11 under Civil Code section 1788.58(a)(5)

12 Exhibit C. Final Billing Statement or other Records - establishing the facts
13 required under Civil Code sections 1788.58(a)(4) and (6)

14 10. The documents attached hereto are true and correct copies of the originals, being a
15 reproduction of Plaintiff's records, based upon my review, except to the extent that confidential
16 and privileged information and/or personal identifying information is omitted or redacted as
17 required by local rules, and applicable state and federal law.

18 11. If called to testify as a witness thereon, I could and would competently testify as to all
19 the facts stated herein.

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DECLARATION OF SHAE HART - 4

320595117

AFFRECATTACH

23-224795

1 I declare under penalty of perjury under the laws of the State of California that the foregoing
2 statements are true and correct.

3
4
5 FEB 19 2024

6 Date

7 

8 Shae Hart

9 CA137

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DECLARATION OF SHAE HART - 5


320595117


AFFRECATTACH


23-224795

EXHIBIT A

EXHIBIT A

BILL OF SALE

Comenity Capital Bank ("Seller"), for value received and pursuant to the terms and conditions of that certain Credit Card Account Purchase Agreement dated October 25, 2019 between Seller and Midland Credit Management, Inc. ("Purchaser"), its successors and assigns ("Credit Card Account Purchase Agreement"), hereby assigns effective as of the Closing Date of February 22, 2023 all rights, title and interest of Seller in and to those certain Accounts described in the Credit Card Account Purchase Agreement and Schedule 1 (the "Asset Schedule") attached hereto and made part hereof for all purposes, to Purchaser.

The information contained in the Sale File (collectively, "Seller's Accounts Information") is true and complete as of the File Creation Date. Further, all of the information contained in Seller's Accounts Information (a) constitutes Seller's own business records regarding the Accounts and (b) accurately reflects in all material respects the information about the Accounts in Seller's possession. All of Seller's Accounts Information has been kept in the regular course of Seller's business, and was made or compiled at or near the time of the event and recorded by (or from information transmitted by) a person (i) with knowledge of the data entered into and maintained in Seller's business records, or (ii) who caused the data to be entered into and maintained in Seller's business records. All capitalized terms used, but not defined, in this Bill of Sale shall have the meanings assigned to such term in the Credit Card Account Purchase Agreement.



This Bill of Sale is executed without recourse except as stated in the Credit Card Account Purchase Agreement to which this is an Exhibit. No other representation of or warranty of title or enforceability is expressed or implied.

COMENITY CAPITAL BANK

By: *Bruce A. [Signature]*

Date: 3/21/2023

Title: Chief Credit Officer

Midland Credit Management, Inc.

By: *Danielle Wolfert*

Date: 5/2/2023

Title: MVP, BUSINESS DEVELOPMENT

**SCHEDULE 1 TO BILL OF SALE
ASSET SCHEDULE**

The individual Accounts transferred pursuant to the Credit Card Account Purchase Agreement and Bill of Sale are described in the electronic file named MCMG_HF_FEB_2023_DPL_CCB.TXT; MCMG_HF_FEB_2023_LCS_CCB.TXT delivered by Comenity Capital Bank to Midland Credit Management, Inc. on February 16, 2023 and summarized in the table immediately below (the "Sale File").

# of Charged-off Accounts	Aggregate Unpaid Balance	Percent	File Creation Date
			2/15/2023

PORTFOLIO LEVEL AFFIDAVIT OF SALE BY ORIGINAL CREDITOR

State of Utah

§

County of Salt Lake

On 3/21/2023, Bruce A. Sweeten ("Affiant") being duly sworn, deposes and says:

1. I am over 18 and I am the Chief Credit Officer of Comenity Capital Bank ("Seller"). In that capacity and as part of my regular job duties, I have custody of certain business records of Seller, routinely review such business records, and am familiar with Seller's processes for the sale and assignment of accounts and business records, including those that are maintained in electronic form.
2. Seller owns certain accounts, and maintains and records information in the records as they relate to such accounts. I am authorized to make the statements and representations set forth in this affidavit on behalf of Seller. The statements set forth herein are true and correct to the best of my knowledge, information, and belief, based on either personal knowledge or review of the business records of the Seller. If called upon as a witness, I can testify competently to the facts contained herein.
3. My regular job duties include having knowledge of, and access to, business records relating to the Accounts (as defined below). These records are kept by Seller in the regular course of business, and it was in the regular course of business of Seller, for an employee or representative with personal knowledge of the act, event, condition, or opinion recorded to make memorandum or records or to transmit information thereof to be included in such memorandum or records; and that the records were made at or near the time of the act and/or event recorded or reasonably soon thereafter.
4. On or about 2/22/2023, Seller sold a pool of charged-off accounts (the "Accounts"; by a Credit Card Account Purchase Agreement to Midland Credit Management, Inc. ("Buyer"). The original creditor at the time of charge-off was Comenity Capital Bank.
5. Pursuant to the sale, Seller sold, transferred, assigned, conveyed, granted, bargained, set over and delivered to Buyer and its successors and assigns, good and marketable title to the Accounts and any unpaid balance free and clear of any encumbrance, equity, lien, pledge, charge, claim or security interest. I am not aware of any errors in the Accounts.
6. In connection with the sale of the Accounts, electronic and other records were transferred to or otherwise made available to the Buyer (the "Transferred Records"). The Transferred Records have been kept in the regular course of Seller's business, and were made or compiled at or near the time of the event and recorded by (or from information transmitted by) a person (i) with knowledge of the data entered into and maintained in Seller's business records, or (ii) who caused the data to be entered into and maintained in Seller's business records. To the extent that the Transferred Records include records that were prepared by a third party, they are records that were incorporated into the records of Seller as a business record and the accuracy of such records are relied upon by Seller in the regular course of business.

7. I certify under penalty of perjury that the foregoing is true and correct.

FURTHER AFFIANT SAYETH NOT.

Signed this 21st day of March, 2023.

Bruce A. Sweeten

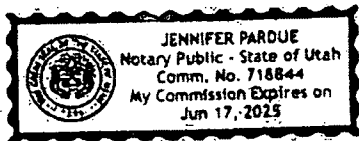
Bruce A. Sweeten (AFFIANT NAME)

Comenity Capital Bank

Subscribed and sworn to before me Jennifer Pardue, on this 21st (date) day of March, in the year 2023, by Bruce A. Sweeten, who proved on the basis of satisfactory evidence to be the person whose name is subscribed to in this document.

(Notary's Official Seal)

Jennifer Pardue
Notary Signature



CERTIFICATE OF CONFORMITY

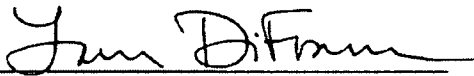
STATE OF UTAH

COUNTY OF SALT LAKE

The undersigned does hereby certify that she/he is an attorney at law duly admitted to practice in the State of Utah and is a resident of Utah, County of Salt Lake, Utah; that she/he is a person duly qualified to make this certificate of conformity; that the foregoing acknowledgment by Bruce A. Sweeten named in the foregoing instrument taken before Jennifer Pardue a notary in the State of Utah duly conforms with the laws of the State of Utah, being the State in which it was taken; and when executed by Mr. Sweeten in the manner indicated will qualify as a valid and effective sworn statement in such state.

03/31/2023

Date



Attorney at Law for the State of Utah

Field	Field Data
Account Number	██████████ 9338
Seller Account ID	██████████
First Name	JOSE
Last Name	ZELAYA
SSN	██-██-6413
Date of Birth	██/██/██
Address 1	1615 W COURT ST APT 6
City	LOS ANGELES
State	CA
Zip	90026
Open Date	11/30/2020
Last Purchase Date	11/20/2021
Last Purchase Amount	\$3,927.99
Last Payment Date	06/18/2022
Last Payment Amount	\$466.00
Sale Amount	\$8,039.35
Charge Off Date	01/31/2023
Charge off Balance	\$8,039.35
Post Charge Off Interest	\$0.00
Post Charge off Fee	\$0.00
Post Charge off Payments	\$0.00
Post Charge off Payments and Credits	\$0.00
Post Charge off Credits	\$0.00
Affinity	IDDEAL
Alternate Account #1	██████████ 9338

Account information provided by Comenity Capital Bank pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 02/22/2023 in connection with the sale of accounts from Comenity Capital Bank to Midland Credit Management, Inc.

MCMG_HF_FEB_2023_DPL_CCB.TXT;MCMG_HF_FEB_2023_LCS_CCB.TXT;

Account Ownership Report

2024-01-30

Debtor Name: JOSE ZELAYA**MCM Account Number:**
320595117**Current Owner:**
Midland Credit Management, Inc.**Ownership History**

Date of Transfer	Owner/Creditor	Owner/Creditor Address
1. 2023-02-22	COMENITY CAPITAL BANK	2795 E. COTTONWOOD PARKWAY,SUITE 100,SALT LAKE CITY,UT,84121
2.	Midland Credit Management, Inc.	350 CAMINO DE LA REINA,SUITE 100,SAN DIEGO,CA,92108


320595117
AFFRECATTACH
23-224795

EXHIBIT B



Yes!
IS POSSIBLE.



The Ideal Card.

VISIT YOUR IDEAL CARD JEWELER TODAY!

PAGE 1 OF 4

Summary of account activity

Account no. ****-****-9338

Previous balance	\$7,222.40
Payments	-466.00
Other credits	0.00
Purchases	0.00
Other debits	0.00
Fees charged	0.00
Interest charged	63.47
New balance	\$8,819.87
Past due amount	0.00
Credit limit	\$7,600.00
Available credit	\$780.13
Statement closing date	06/20/2022
Days in billing cycle	27

Payment information

New balance	\$8,819.87
Minimum payment due	\$240.00
Payment due date	07/19/2022

Late payment warning:
If we do not receive your minimum payment by 07/19/2022 you may have to pay up to a \$40.00 late fee.

Minimum payment warning: If you make only the minimum payment for each period, you will pay more in interest and it will take you longer to pay off your balances. For example:

If you make no additional charges using this card and each month you pay:	You will pay off the balance shown on the statement in about:	And you will end up paying an estimated total of:
Only the minimum payment	20 years	\$24954
\$317	3 years	\$11420 (savings \$13535)

For information regarding credit counseling services, call 1-800-284-1706.

WARNING: Promotional Plan(s) ENDING SOON!

You must pay your Plan 412-00004 balance of \$640.77 in full by Sep 20, 2022 to avoid paying accrued interest charges. PLUS - If you have other purchases or promotional balances on your account, you also will need to pay your Minimum payment by the Payment due date shown on this statement.

You must pay the balance \$3,284.99 of your Plan 418-00001 in full by May 24, 2023 to avoid paying accrued interest charges.

Account Questions? Need to make a payment? Want to know how to go paperless?
Visit comenity.net/IDCardJewelry or call 1-855-408-1662 (TDD/TTY 1-888-819-1918).

If you returned an item that was on a promotional plan and have questions with how the return was applied to your account, please call us.

Skip signing in to pay and use Comenity's EasyPay. It's safe and convenient. Use your smartphone camera or code reader to scan the QR code printed on your payment stub below to get started.

Details of your transactions

TRANS DATE	TRANSACTION DESCRIPTION/LOCATION	AMOUNT
06/18/2022	PAYMENT - THANK YOU	-466.00
Fees		
	Total fees charged for this period	\$0.00
Interest charged		
	Interest charge on purchases	\$63.47
	Total interest for this period	\$63.47

NOTICE: See reverse side for important information.
Please tear at perforation above



Account number	****-****-9338
New balance	\$8,819.87
Minimum payment	\$240.00

99 3

Mailed payments must reach us by 8pm ET on 07/19/2022.

Amount enclosed:



Please make check payable to:
COMENITY - Ideal Card

Please return this portion along with your payment to:
PO BOX 650965
DALLAS TX 75265-0965

JOSE ZELAYA
1815 W COURT ST APT 6
LOS ANGELES CA 90028-6527



43001017 00016715 9338 000024000 000661967

Credit card offers are subject to credit approval.
Ideal Credit Card Accounts are issued by Comenity Capital Bank.

Keep this portion for your records.

What To Do If You Think You Find A Mistake On Your Statement

If you think there is an error on your statement, write to us at: Comenity Capital Bank, PO Box 182620, Columbus, OH 43218-2620.

In your letter, give us the following information:

- Account Information: Your name and account number.
- Dollar amount: The dollar amount of the suspected error.
- Description of Problem: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us within 60 days after the error appeared on your statement. You must notify us of any potential errors in writing. You may call us, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount.
- The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question, you are responsible for the remainder of your balance.
- We can apply any unpaid amount against your credit limit.

Your Rights If You Are Dissatisfied With Your Credit Card Purchases If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase. To use this right, all of the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than \$50. (Note: Neither of these is necessary if your purchase was based on an advertisement we mailed to you, or if we own the company that sold you the goods or services.)

2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.

3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us in writing at: Comenity Capital Bank, PO Box 182620, Columbus, OH 43218-2620. While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

HOW TO AVOID PAYING INTEREST. Your due date is at least 25 days after the close of each billing cycle. We will not charge you interest on purchases if you pay your entire balance by the due date each month. We will begin to charge interest on new purchases made under a Low APR, Equal Payment or Budget Payment Credit Plan from the date of purchase.

BALANCE COMPUTATION METHOD. We calculate interest separately for each type of balance on your account using a "Daily Balance" to determine interest charges for each billing period. We figure the interest charge on your account by applying the periodic rate to the "daily balance" of your account for each day in the billing cycle. To get the "daily balance" we take the beginning balance of your account each day, add any new purchases and fees, and subtract any payments or credits (treating any net credit balance as a zero balance). This gives us the daily balance.

CREDIT REPORTING. We may report information about your account to credit bureaus. Late payments, missed payments, or other defaults on your account may be reflected in your credit report.

NOTICE OF CREDIT REPORT DISPUTES. If you believe the account information we reported to a consumer reporting agency is inaccurate, you may submit a direct dispute to Comenity Capital Bank, PO Box 182120, Columbus, OH 43218-2120. Your written dispute must provide sufficient information to identify the account and specify why the information is inaccurate:

- Account Information: Your name and account number
- Contact Information: Your address and telephone number
- Disputed Information: Identify the account information disputed and explain why you believe it is inaccurate
- Supporting Documentation: If available, provide a copy of the section of the credit report showing the account information you are disputing

We will investigate the disputed information and report the results to you within 30 days of receipt of the information needed for our investigation. If we find that the account information we reported is inaccurate, we will promptly provide the necessary correction to each consumer reporting agency to which we reported the information.

PAYMENTS MARKED "PAID IN FULL." All written communications regarding disputed amounts that include any check or other payment instrument marked with "payment in full" or similar language, must be sent to: 3000 Kellway Drive, Suite 120 Carrollton, TX 75006. DO NOT USE THE ENCLOSED RETURN ENVELOPE.

We may accept payment sent to any other address without losing any of our rights.

- No payment shall operate as an accord and satisfaction without prior written approval.

CUSTOMER SERVICE. Visit comenity.net/ideajewelry or call 1-855-408-1662 (TDD/TTY 1-888-619-1918).

TELEPHONE MONITORING. To provide you with high-quality service, phone communication with us is monitored and/or recorded.

ADDITIONAL INFORMATION. The following designations, when appearing on the front of your statement, mean the following: V means variable rate (this rate may vary); WY INT PAY RQ means WAIVE INTEREST, PAYMENT REQUIRED; WY INT EQ PY means WAIVE INTEREST, EQUAL PAYMENT; WY INT LOW PMT means WAIVE INTEREST, LOW PAYMENT; DF INT PY RQ means DEFER INTEREST, PAYMENT REQUIRED; DF INT EQ PY means DEFER INTEREST, EQUAL PAYMENT; DF INT LOW PMT means DEFER INTEREST, LOW PAYMENT and LOW APR EQ PAY means LOW APR, EQUAL PAYMENT. If you have a variable rate account, your periodic rates may vary. You may pay all of your Account balance at any time without penalty.

Send all inquiries to: CUSTOMER SERVICE, PO Box 183003, Columbus, OH 43218-3003.

Send all bankruptcy notices and related correspondence to Comenity Capital Bank, Bankruptcy Department, PO Box 183043, Columbus, OH 43218-3043.

NOTICE ABOUT ELECTRONIC CHECK CONVERSION. When you provide a check as payment, you authorize us either to use information from your check to make a one-time electronic fund transfer from your account or to process the payment as a check transaction. When we use information from your check to make an electronic fund transfer, funds may be withdrawn from your account as soon as the same day we receive your payment, and you will not receive your check back from your financial institution.

PAYMENTS. Pay your Account by the payment due date by the time listed below. If we do not receive your payment in a correct format (outlined below) it may not be credited to your Account for up to five days, or may be rejected. Also, your payment must reach us by the payment cutoff time that applies to the payment method you select.

Correct Format. Correct format for different payment methods include:

Mailing or Overnight: Send a personal check, money order, traveler's check or cashier's check payable in U.S. dollars, to the name and address shown on this Statement in the payment stub area containing your balance and minimum payment amount. Be sure to include your payment stub, do not staple or clip your payment to the stub, include your account number on your check, use the envelope provided with your Statement, send one payment with one payment stub and do not send any correspondence with your payment. You should overnight a payment to 3000 Kellway Drive, Suite 120 Carrollton, TX 75006 and the additional format requirements are the same as other mailed payments unless there is a dispute, in which case you follow the Payments Marked "Paid in Full" section above. Do not send cash or gift certificates. **Pay By Phone:** You can call us toll free at 1-855-408-1662 (TDD/TTY 1-888-619-1918) to make a payment by telephone, which may include a fee. **Online:** You can make a payment online at comenity.net/ideajewelry.

Payment Cutoff Times. Payment cutoff times/deadlines for us to receive payments are by the due date on this Statement in the payment stub area at the following times: **Mailing and Overnight:** By 6:00 pm Eastern Time (ET); **Pay By Phone:** By 5:00 pm (ET); **Online:** By 5:00 pm (ET).

New Information

Title (optional) _____ First Name _____ MI _____

Last Name _____ Soc. Sec. No. _____

Street Address _____

Apt. No. _____ RR _____ PO Box _____

City _____ State _____ Zip Code _____ Foreign Map Code _____

Home Phone _____ Work Phone _____

Email Address _____

2022 totals year to date	
Total fees charged in 2022	\$29.00
Total interest charged in 2022	\$1,217.64

Interest charge calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account. See BALANCE COMPUTATION METHOD on page 2 for more details. Minimum interest charge may exceed interest charge below, per your credit card agreement.

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
Purchases	29.9900%	2,881.08	83.47
Plan 412-00004 OF INT PY RQ	29.9900%	814.30	0.00
Plan 418-00001 OF INT PY RQ	29.9900%	3,918.34	0.00

Details of your plans

001-00001 Purchases								
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
N/A	N/A	NONE	3,298.64	83.47	486.00	2,894.11	102.00	0.00
412-00004 You must pay your promotional balance of \$840.77 in full by 09/20/2022 to avoid paying accrued interest charges.								
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$825.77	09/19/2021	09/20/2022	840.77	0.00	0.00	840.77	23.00	182.93
418-00001 You must pay your promotional balance of \$3,284.99 in full by 05/24/2023 to avoid paying accrued interest charges.								
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$3,927.99	11/20/2021	05/24/2023	3,284.99	0.00	0.00	3,284.99	115.00	878.58

Additional important messages**IMPORTANT INFORMATION ABOUT LATE FEE CREDITS**

We may occasionally provide a credit for the amount, part or all, of a late fee charged to your account. If we do, we will charge a fee of up to \$40.00 for any subsequent late payment. In addition, we may reverse the credit and repost the charge to your account if you fail to make the minimum payment due on or before the due date in the next billing period.

GO PAPERLESS and manage your account online!

With paperless billing, you receive an email reminder prior to your payment due date. Get started today by visiting comenity.net/100jewelry

STEP 1: Sign in or register your account. **STEP 2:** Click Paperless account preference on the home page.

How can you take charge against ID Theft? Visit idtheft.gov to find out.

EXHIBIT C

Summary of account activity

Account no. **** * 9338

Previous balance	+ \$7,880.63
Payments	-0.00
Other credits	-0.00
Purchases	+0.00
Other debits	+0.00
Fees charged	+40.00
Interest charged	+118.72
New balance	+ \$8,039.35
Past due amount	\$1,805.00
Credit limit	\$7,450.00
Available credit	-\$589.00
Statement closing date	01/25/2023
Days in billing cycle	31

Payment information

New balance	\$8,039.35
Minimum payment due	\$2,087.00
Payment due date	02/19/2023

Minimum Payment Warning: If you make only the minimum payment for each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay:	You will pay off the balance shown on the statement in about:	And you will end up paying an estimated total of:
Only the minimum payment	21 years	\$27,268
\$403	3 years	\$14,514 (Savings = \$12,754)

For information regarding credit counseling services, call 1-800-284-1706.

YOU HAVE A PROMOTIONAL PLAN THAT HAS EXPIRED. \$985.96 MAY NOW BE ACCRUING INTEREST AT A HIGHER APR. PLEASE REFER TO THE DETAILS OF YOUR PLANS AND INTEREST CHARGE CALCULATION SECTIONS OF THIS STATEMENT FOR ADDITIONAL INFORMATION.

YOU MUST PAY THE BALANCE \$3,284.99 OF YOUR PLAN 18 MONTH OF INT PY RG IN FULL BY 05/24/23 TO AVOID PAYING ACCRUED INTEREST CHARGES.

If you returned an item that was on a promotional plan and have questions with how the return was applied to your account, please call us. *

Details of your transactions

TRANS DATE	TRANSACTION DESCRIPTION/LOCATION	AMOUNT
Fees		
01/19/2023	LATE FEE	40.00
	TOTAL FEES FOR THIS PERIOD	\$40.00
Interest charged		
	Interest Charge on Purchases	\$118.72
	Total Interest For This Period	\$118.72

2023 totals year to date	
Total fees charged in 2023	\$40.00
Total interest charged in 2023	\$118.72

Interest charge calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account. See BALANCE COMPUTATION METHOD on page 2 for more details. Minimum interest charge may exceed interest charge below, per your credit card agreement.

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
Purchases	29.99%	3,688.65 (DA)	93.94

(CONTINUED)

NOTICE: See reverse side for important information.
Please tear at perforation above



☐ Yes, I have moved or updated my e-mail address - see reverse.



JOSE ZELAYA
1815 W COURT ST APT 6
LOS ANGELES CA 90026-5527

Account number	**** * 9338
New balance	\$8,039.35
Minimum payment	\$2,087.00

Amount enclosed: Mailed payments must reach us by 6pm ET on 02/19/2023.

\$

Please make check payable to:
COMENITY - IDEAL CARD

Please return this portion along with your payment to:
PO Box 650965
Dallas TX 75265-0965



9637043018

0965

9338

000208700 000A03935

Keep this portion for your records.

What To Do If You Think You Find A Mistake On Your Statement
If you think there is an error on your statement, write to us at: Comenity Capital Bank, PO Box 182620, Columbus, OH 43218-2620.

In your letter, give us the following information:

- **Account information:** Your name and account number.
- **Dollar amount:** The dollar amount of the suspected error.
- **Description of Problem:** If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us within 60 days after the error appeared on your statement. You must notify us of any potential errors in writing. You may call us, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount.
- The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question, you are responsible for the remainder of your balance.
- We can apply any unpaid amount against your credit limit.

Your Rights If You Are Dissatisfied With Your Credit Card Purchases
If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase.

To use this right, all of the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than \$50. (Note: Neither of these is necessary if your purchase was based on an advertisement we mailed to you, or if we own the company that sold you the goods or services.)
2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.
3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact us in writing at: Comenity Capital Bank, PO Box 182620, Columbus, OH 43218-2620.

While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

CREDIT REPORTING. We may report information about your account to credit bureaus. Late payments, missed payments, or other defaults on your account may be reflected in your credit report.

NOTICE OF CREDIT REPORT DISPUTES

If you believe information we reported to a consumer reporting agency is inaccurate, notify us at Comenity Capital Bank, PO Box 182120, Columbus, OH 43218-2120. Please provide:

- Your name and account number
- Your address and telephone number
- What information you dispute and why you believe it is inaccurate
- If available, a copy of the section of the credit report showing the information you are disputing

Send all bankruptcy notices and related correspondence to Comenity Capital Bank, Bankruptcy Department, PO Box 183043, Columbus, OH 43218-0043.

PAYMENTS MARKED "PAID IN FULL": All written communications regarding disputed amounts that include any check or other payment instrument marked with "payment in full" or similar language, must be sent to: 3000 Kasey Drive, Suite 120, Carrollton, TX 75006.

DO NOT USE THE ENCLOSED REMITTANCE ENVELOPE.

- We may accept payment sent to any other address without losing any of our rights.

HOW TO AVOID PAYING INTEREST: Your due date is at least 25 days after the close of each billing cycle. We will not charge you interest on purchases if you pay your entire balance by the due date each month. We will begin to charge interest on new purchases made under a Low APR, Equal Payment or Budget Payment Credit Plan from the date of purchase.

BALANCE COMPUTATION METHOD: We calculate interest separately for each balance using the method(s) described below. The two letters in parentheses next to the Balance Subject to Interest Rate column in the Interest Charge Calculation section on this statement corresponds to the following:

(DA) We figure the interest charge on this balance by applying the periodic rate to the "daily balance" for each day in the billing period. To get the "daily balance" we take the beginning balance each day, add any new transactions and fees and subtract any payments or credits (treating any not credit balance as a zero balance). This gives us the daily balance.

CUSTOMER SERVICE: Visit COMENITY.NET/ADJEWELRY or call 1-855-408-1862 (TDD/TTY 1-888-819-1918). Send all inquiries to: CUSTOMER SERVICE, PO Box 183003, Columbus, OH 43218-3003.

TELEPHONE MONITORING: To provide you with high-quality service, phone communication with us is monitored and/or recorded.

ADDITIONAL INFORMATION: Abbreviations on your statement mean the following: (V) means variable rate (this rate may vary); WV INT PAY RO means WAIVE INTEREST, PAYMENT REQUIRED; WV INT EQ PY means WAIVE INTEREST, EQUAL PAYMENT; WV INT LOW PMT means WAIVE INTEREST, LOW PAYMENT; DEF INT PY RO means DEFER INTEREST, PAYMENT REQUIRED; DEF INT EQ PY means DEFER INTEREST, EQUAL PAYMENT; DEF INT LOW PMT means DEFER INTEREST, LOW PAYMENT and LOW APR EQ PAY means LOW APR, EQUAL PAYMENT. You may pay all of your Account balance at any time without penalty.

NOTICE ABOUT ELECTRONIC CHECK CONVERSION: When you provide a check as payment, you authorize us either to use information from your check to make a one-time electronic fund transfer from your account or to process the payment as a check transaction.

PAYMENTS: Payments in U.S. dollars received by the applicable due date and cutoff time will be credited as of the date received. Mailed or overnighted payments must also meet the requirements below. Otherwise, a payment may not be credited for up to five days or may be rejected.

Mailing of Overnight (cutoff time 6:00 p.m. Eastern Time (ET)):

- Send a personal check, money order, traveler's check or cashier's check to the name and address on the payment stub (regular mail) or 3000 Kasey Drive, Suite 120, Carrollton, TX 75006 (overnight).
- Include your payment stub, use the return envelope provided with your statement, write your account number on the check and send one payment with one payment stub.
- Do not staple or clip your payment to the stub, send any correspondence with your payment or send cash or gift certificates.

Pay By Phone (cutoff time 5:00 p.m. ET): Call us toll free at 1-855-408-1862 (TDD/TTY 1-888-819-1918).

Online (cutoff time 5:00 p.m. ET): Visit COMENITY.NET/ADJEWELRY.

New Information

Title (optional) _____ First Name _____ MI _____
Last Name _____ Soc. Sec. No. _____
Street Address _____
Apt. No. _____ RR _____ PO Box _____
City _____ State _____ Zip Code _____ Foreign Map Code _____
Home Phone _____ Work Phone _____
Email Address _____

Interest charge calculation - continued

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
12DS-R 2 126201 12 MNTH DF INT PY RQ	29.99%	973.11 (DA)	24.78
18DS-R 2 132401 18 MNTH DF INT PY RQ	29.99%	4,682.77 (DA)	0.00

Details of your plans

ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
N/A	N/A	NONE	3,634.46	40.00	0.00	3,768.40	2,087.00	93.94
12DS-R-21262 01 This Promotion has ended. You will continue to see these details until the balance is paid in full. The balance is now included in your current balance and minimum payments due.								
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$825.77	09/19/2021	09/20/2022	\$61.18	0.00	0.00	\$65.96	0.00	0.00
18DS-R-21324 01 You must pay your plan balance of \$3,284.99 in full by 05/24/2023 to avoid paying interest charges at the higher purchase APR noted above.								
ORIGINAL PURCHASE AMOUNT	ORIGINAL PURCHASE DATE	PLAN EXPIRES	PREVIOUS PLAN BALANCE	PURCHASES & CHARGES	PAYMENTS & CREDITS	NEW PLAN BALANCE	PLAN MINIMUM	TOTAL ACCRUED INTEREST
\$3,927.99	11/20/2021	05/24/2023	3,284.99	0.00	0.00	3,284.99	0.00	1,459.60

Additional important messages

Consumers are entitled to one free credit report per year. To request yours call 1-877-322-6228 or visit annualcreditreport.com

IMMEDIATE ATTENTION REQUIRED! Your Account is extremely past due and will be written off as a bad debt SOON. To avoid this, you must pay the Minimum payment amount shown on this statement at least 4 days prior to the end of the month in which this statement closed. You can find the Statement closing date in the Summary of account activity on page 1 of this statement. If you are not able to pay the Minimum payment amount, we may still be able to assist you. Call us immediately at 1-855-617-8089 (TDD/TTY 1-866-619-1918) to discuss your payment options. If written off, the bad debt will be reported to the three major credit bureaus and our Recovery team will determine the appropriate steps, as permitted and available under applicable law, to protect our interests.

IMPORTANT INFORMATION ABOUT LATE FEE CREDITS

We may occasionally provide a credit for the amount, part or all, of a late fee charged to your account. If we do, we will charge a fee of up to \$40.00 for any subsequent late payment. In addition, we may reverse the credit and repost the charge to your account if you fail to make the minimum payment due on or before the due date in the next billing period.

JOSE ZELAYA
1615 W COURT ST APT 6
LOS ANGELES CA 90026--552